

# HOUSE . . . . . No. 4395

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, August 18, 2025.

The committee on the Judiciary, to whom was referred the petition (accompanied by bill, House, No. 1823) of Kathleen R. LaNatra, Michelle L. Badger and others relative to increasing penalties for hit and run with a recreational vehicle, reports recommending that the accompanying bill (House, No. 4395) ought to pass.

For the committee,

MICHAEL S. DAY.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act increasing penalties for hit and runs with recreational vehicles in the Commonwealth to be known as the James Ward Act.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Section 26B of chapter 90B of the General Laws, as appearing in the 2022  
2   Official Edition, is hereby amended by striking out, in lines 17 -18, the words “shall be punished  
3   by a fine of not less than \$500 nor more than \$1,000” and inserting in place thereof the following  
4   words:- person, not resulting in the death of another person, shall be punished by imprisonment  
5   in a jail or house of correction for not more than 1 year or by a fine of not less than \$500 nor  
6   more than \$1,000, or by both such fine and imprisonment.

7           SECTION 2. Said section 26B of said chapter 90B, as so appearing, is hereby further  
8   amended by inserting, after subsection (c), the following subsection:-

9           (d) Whoever operates a snow vehicle or a recreation vehicle and, without stopping and  
10   making known their name, address and the registration number of their snow vehicle or  
11   recreation vehicle, leaves the scene after knowingly colliding with or otherwise causing bodily  
12   injury to another person shall, if the injuries result in the death of another person, be punished by

13 imprisonment in a jail or house of correction for not more than 2 1/2 years or by a fine of not  
14 more than \$5,000 or by both such fine and imprisonment.

15 SECTION 3. Said section 26B of said chapter 90B, as so appearing, is hereby further  
16 amended by striking out, in line 19, the word “(d)” and inserting in place thereof the following  
17 word:- (e).

18 SECTION 4. Said section 26B of said chapter 90B, as so appearing, is hereby further  
19 amended by striking out, in line 29, the word “(e)” and inserting in place thereof the following  
20 word:- (f).